

11. 9:00 AM CASE NUMBER: C24-02873
CASE NAME: JUDITH SEELYE VS. TAMPICO HEALTHCARE CENTER, LLC
***HEARING ON MOTION IN RE: TO ABATE ACTION**
FILED BY: TAMPICO HEALTHCARE CENTER, LLC
TENTATIVE RULING:

Motion withdrawn by Attorney Schrader.

12. 9:00 AM CASE NUMBER: C24-03111
CASE NAME: VICKI SOLLIS DAVIS VS. ANN CHAMBERS
***HEARING ON MOTION IN RE: INTERLOCUTORY JUDGMENT OF PARTITION BY SALE**
FILED BY: SOLLIS DAVIS, VICKI LYNN
TENTATIVE RULING:

Unopposed – granted.

13. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
HEARING IN RE: SPECIAL MOTION FOR DECLARATORY RELIEF
FILED BY: CARTER HALLOCK
TENTATIVE RULING:

Plaintiff Carter Chapin Hallock (“Plaintiff”) has filed the instant special motion for declaratory relief, which asks the Court to declare, pursuant to Code of Civil Procedure section 1060, that he is a 49% owner of CMOUTS LLC, based on an alleged written contract attached to the complaint as Attachment A.

Code of Civil Procedure section 1060, provides that:

Any person interested under a written instrument . . . or under a contract, or who desires a declaration of his or her rights or duties with respect to another. . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties. . . including a determination of any question of construction or validity arising under the instrument or contract.

As the statutory authority provides, a claim for declaratory relief must be asserted in “an original action or cross-complaint,” not as a standalone motion. (See Code of Civ. Proc., § 1060.) Here, Plaintiff’s operative complaint does not contain a claim for declaratory relief, and the instant “special motion” is not a recognized procedure for asserting declaratory relief.

Plaintiff’s special motion for declaratory relief is DENIED.